

1 AN ACT relating to Kentucky-grown agricultural product procurement and
2 declaring an emergency.

3 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

4 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 158 IS CREATED TO
5 READ AS FOLLOWS:

6 **(1) As used in this section:**

7 **(a) "Agricultural product" has the same meaning as in KRS 260.016; and**

8 **(b) "Kentucky-grown agricultural product" has the same meaning as in KRS**
9 **260.016.**

10 **(2) A local school board or local school district participating in any of the United**
11 **States Department of Agriculture Child Nutrition Programs may purchase**
12 **Kentucky-grown agricultural products in accordance with federal law and shall**
13 **not be subject to KRS 45A.345 to 45A.460 or 424.260.**

14 **(3) This section shall not be construed to exempt a local school board or local school**
15 **district from any other requirement established by state or federal law.**

16 ➔Section 2. Whereas it is imperative that children throughout the Commonwealth
17 are served nutritious and healthy foods at home and in school districts, an emergency is
18 declared to exist, and this Act takes effect upon its passage and approval by the Governor
19 or upon its otherwise becoming a law.